

BEFORE
THE FEDERAL MARITIME COMMISSION

DOCKET NO. 23-01

SAMSUNG ELECTRONICS AMERICA, INC.
Complainant

VS.

SM LINE CORPORATION
Respondent

**RESPONDENT'S MOTION FOR CONFIDENTIAL TREATMENT
OF PORTIONS OF ITS RESPONSE TO
SAMSUNG ELECTRONICS AMERICA, INC.'S MOTION TO COMPEL AND FOR
SANCTIONS FOR SPOILIATION OF EVIDENCE**

Respondent SM Line Corporation ("SM Line") hereby moves pursuant to 46 C.F.R. §§ 502.69 and 502.5(b) to seek confidential treatment of certain portions of Respondent's Response to Samsung Electronics America, Inc.'s ("SEA") Motion To Compel And For Sanctions For Spoliation Of Evidence ("Response to Motion to Compel") and Exhibits T, U, W, and X, as well as Exhibit 1 to the Declaration of Won-Mo Lee submitted therewith. ("Response").

SM Line's Response reference certain SM Line policies that have been exchanged during discovery between the parties subject to a confidentiality agreement and therefore cannot be disclosed.

For the foregoing reasons, SM Line respectfully requests that:

1. The confidential discovery documentation referenced in the Response as well as copied of such documentation that are included in Exhibits T, U, W, and X to SM Line's

Response to the Motion to Compel, , as well as Exhibit 1 to the Declaration of Won-Mo Lee be kept confidential.

2. Be allowed to submit a public redacted version of the material for which it seeks confidentiality pursuant to 46 C.F.R. § 502.5(a)(2).

Dated: April 12, 2024

Respectfully submitted,

/s/Wook Chung

Wook Chung

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Counsel for Respondent

SM Line Corporation

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 12th day of April 2024, the foregoing document was served via electronic mail on:

Federal Maritime Commission
Office of the Secretary
secretary@fmc.gov

Federal Maritime Commission
Presiding Administrative Law Judge
judges@fmc.gov

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/s/Wook Chung _____